



Richard D. Lamm
Governor

DEPARTMENT OF NATURAL RESOURCES

David H. Geisner, Executive Director

MINED LAND RECLAMATION DIVISION

DAVID C. SHELTON, Director



File



REQUEST FOR TRANSFER OF MINERAL PERMIT AND SUCCESSION OF OPERATORS

I.

RECITALS

A. On June 24, 1978, the Mined Land Reclamation Board of the Colorado Department of Natural Resources (the "State") granted to Martin Marietta Corporation, address P. O. Box 529, Lyons, Colorado 80540 ("Permittee") permit number 77-341 (the "Permit") pursuant to which Permittee has been conducting a mining and reclamation operation in the County of Larimer, State of Colorado.

B. Permittee wishes to assign the permit to Southwestern Cement Enterprises, Inc., address 3055 Wilshire Boulevard, Los Angeles, California 90010, as Successor Operator ("Successor") and Successor wishes to become Successor Permittee under the permit.

C. Successor understands that the reclamation plan (the "Plan") required by the permit and by applicable State laws and regulations has not been completed and is willing to assume full responsibility for the completion of the Plan.

II.

AGREEMENTS

Permittee and Successor hereby agree, for their own benefit and for the benefit of the State, such agreements to be effective ipso facto upon the approval by the State of the transfer of the Permit from Permittee to Successor, as follows:

1. Successor has inspected the mining and reclamation operations to its entire satisfaction and is fully aware of the condition thereof. Successor understands and accepts all of the conditions of the Permit.

2. Successor will complete the reclamation plan, and hereby assumes liability for completing such plan as to all areas heretofore disturbed, as well as to all areas hereafter disturbed. Successor will perform all of the obligations of the Permittee under the Permit which have not heretofore been performed by Permittee.

3. Successor hereby tenders to the State its attached Performance and Financial Warranties*, which are to be substituted for the Performance and Financial Warranties heretofore filed by the Permittee, effective upon the release of the latter Warranties.

4. Successor represents to the State that, to the best of its knowledge, information and belief, it is not in violation of any of the provisions of the Colorado Mined Land Reclamation Act with respect to any other operation conducted by it in the State of Colorado.

Permittee and Successor hereby request the State to consent to the assignment of the Permit, to recognize Successor as Successor Operator under the Permit, and to accept the tendered substitute Performance and Financial Warranties in place of the Warranties presently on file with the State.

* Attach executed Performance and Financial Warranties.

EXECUTED this 3rd day of April, 1984.

MARTIN MARIETTA CORPORATION
Name of Permittee

SOUTHWESTERN CEMENT ENTERPRISES, INC.
Name of Successor

By P.H. Sendel
Signature of Officer

By W.J. Lawrence
Signature of Officer

Vice President
Title
Permittee

President
Title
Successor Operator

NOTARY FOR PERMITTEE

STATE OF Maryland)
COUNTY OF Montgomery) ss.

The foregoing instrument was acknowledged before me this 3rd day of April, 1984, by Philip H. Sendel as Vice President of Martin Marietta Corporation.

Marothy L. Belcher
NOTARY PUBLIC

My Commission expires

July 1, 1986

NOTARY FOR SUCCESSOR

STATE OF Maryland

COUNTY OF Montgomery

SS.

The foregoing instrument was acknowledged before me this 3rd day of April, 1984, by W. J. Conway as President of Southwestern Cement Enterprises, Inc.

Wendy L. Bilcher
NOTARY PUBLIC

My Commission expires:

7/1/86

CONSENT OF STATE

(a) Consent is hereby granted to the transfer of the Permit above referred to from _____ to _____

(b) _____
is hereby recognized as Successor Operator under such Permit.

(c) The Performance and Financial Warranty substitution above proposed is hereby accepted and approved.

STATE OF COLORADO
DEPARTMENT OF NATURAL RESOURCES
MINED LAND RECLAMATION BOARD
MINED LAND RECLAMATION DIVISION

Date: 10/1/84

By David C. Stults
Division Director